9/21/2022 - Brooklyn Union Gas/National Grid - 19-G-0309/0310

STATE OF NEW YORK

OFFICE OF RENEWABLE ENERGY SITING

CASE 19-G-0309 - Proceeding on motion of the Commission as to the rates, charges, rules, and regulations of the Brooklyn Union Gas Company, doing business as National Grid New York for gas service.

CASE 19-G-0310 - Proceeding on motion of the Commission as to the rates, charges, rules, and regulations of the Brooklyn Union Gas Company, doing business as National Grid New York for gas service.

INFORMATION SESSION

AND

PUBLIC STATEMENT HEARING

DATE: September 21, 2022 at 1:14 p.m.

LOCATION: 76 Kingsland Avenue
Cooper Park Houses
The Gymnasium
Brooklyn, New York 11211

BEFORE: A.L.J. MAUREEN F. LEARY
Chair Rory Christian

Reported by Hannah Allen

(The hearing commenced at 1:14 p.m.)

THE REPORTER: I'm ready.

A.L.J. LEARY: Thank you. We are on the record. Excuse me. I call case 19-G-0309 and 19-G-0310, proceeding on motion of the Commission as to rate charges, rules, and regulations of the Brooklyn Union Gas Company doing business as National Grid for gas service.

Good afternoon, everyone. Welcome. Good afternoon. Thank you. That felt good. My name is Maureen Leary. I am an Administrative Law Judge with the Department of Public Service. And I'm going to be presiding over this afternoon's public statement hearing.

We are very fortunate this afternoon and honored, I am, to have the Chair of the Public Service Commission, Rory Christian. He is sitting to my right. Chair Christian, would you like to make a few remarks?

CHAIR CHRISTIAN: Thank you, Judge Leary, I appreciate you. I'm grateful that you've all come out today. It's good to see the community is interested and aware of the various issues it faces.

We look forward to hearing what you have to say. We will take into consideration as the Commission makes its determinations on various matters related to this project. So I want to thank you all for being here taking time out of your day.

We know your time is valuable. We look forward to hearing what you have to say and we look forward to a healthy discourse this afternoon. So thank you very much and thank you for being here.

A.L.J. LEARY: Thank you, Chair. So this hearing was the subject of a notice that the Secretary issued; it's called the public notice. And it is available both at the registration table out front, at this table up here, and I have a couple of copies if you'd like it.

It provides information about a location where we will be going this evening and some of the parameters for providing public comments. So being here today isn't the only way that you can comment. If you don't feel comfortable standing up and providing a -- an oral comment, lots of other ways by telephone, email, snail mail, and electronically.

I -- I want to acknowledge a couple of

folks working with us this afternoon. Our Office of Consumer Services, Jill Wasser, and Maribel Rivera. Thank you so much. I also want to thank representatives of the company.

All of this team did a great job putting this hearing together. It's no easy feat having a meeting in Brooklyn, as we found out, but we're here and we want to thank those hosting us today for providing the space for us to hear what the public has to say about the Company's proposal.

Again, I want to echo Chair Christian's remarks. Civic engagement, that's what you all are doing. And it's -- it's -- it takes time. Thank you so much for your participation. It means a lot. It's really important to our State and to our democracy.

So let me give you a roadmap of what's going to go on today. First, we're going to have an information session presented by the company. They'll tell you about the proposal. At -- following that information session, there -- there will be a question and answer period at which time you will have the opportunity to inquire about any questions you have with respect to the facility, the company

will answer them.

Remember, your questions should be related to the Greenpoint vaporizer, liquefied natural gas -- vaporizer proposal at that facility. It should not be about how high your utility bills are. And believe me, it's in the press we're very aware how tough that issue is. But that's not what today is about. It's about this proposal.

Finally, after the question and answer session, we will begin the public statement hearing. I would ask you to silence all telephones and whatever beepers or other things you may have, just so you don't disturb others. Very important that we respect each other today.

I grew up with Sister Eleanor and she was really tough on me, but boy, she taught me something really important, which is respect of others. So when someone's speaking, including the company, or me, or Chair Christian, please respect us.

You may not agree with everything we have to say. And please respect each other. It's really important that we maintain some level of, you know, order in this room so we are able to get on the

record the positions that you've brought today about this proposal. Okay. I'm going to ask the company Mr. Decicco, are you ready to begin the information session?

MR. DECICCO:I am indeed, Judge. Thank you very much. I hope everyone can hear me okay in -- in the back. As the Judge said, my name is Phil Decicco and I represent National Grid. And I want to first share the thanks for everyone that has joined us today to -- to participate in what I hope is a really productive dialogue.

We had really two great sessions yesterday, we heard a lot of good feedback and -- and hope to do the same today. As I -- I said yesterday, feedback from the public is really influencing and -- and -- and driving our decisions more so than it has at any time in the past.

So your time today is appreciated. We certainly appreciate you hosting the meeting with us this afternoon. National Grid serves nearly 2,000,000 customers here in Downstate New York, customers that rely on us to heat their homes and to cook their food and to power their business.

It's an awesome responsibility to have

to serve them 365 days a year, 24 hours a day. And it's something that we're proud to have done for about a 100 years.

Today, we'll be discussing a project that's going to continue to help us serve customers. And as part of a product of a -- of a really long and thorough public process to identify new ways in which to serve our customers. If you could go to the next slide.

In 2019, we made commitments to New York State and to our customers. We first said that we would find ways to allow our customers -- new customers to continue to connect to our system because we heard loudly and clearly that that's what their -- our customers and our stakeholders wanted to see us do.

We also said that we would solicit feedback on new and different solutions to address the -- our customers' energy needs in the future. And we did that through a public process that presented a range of options. And we considered all sorts of issues like reliability and cost, and environmental and community impacts, in putting together a package of -- of options to serve our

customers here in Downstate New York.

We also heard very clearly that our customers were interested in seeing us do things like energy efficiency, to reduce their energy and consumption and not as interested in seeing us do projects to build new supply. And that's really what we've been focused on.

With that feedback, we developed an approach that in fact relies very heavily on energy efficiency, and demand response, and weatherization, all programs again, to help our customers use less energy. We coupled that approach with a portfolio of small, targeted, effectively non-pipes projects that we think are going to allow us to continue to provide safe and reliable service on those coldest days of the year.

And one component of that portfolio is the Greenpoint vaporizer project. As you will hear from my colleague, the project allows us to use our existing gas infrastructure, use the assets we've already have and paid for more effectively and efficiently.

It involves no new gas supply. It will only operate on a handful of days when our

customers need the gas the most. It provides unique reliability benefits and is more efficient and consumes less energy than current units at the -- at the facility.

It's important to know that these plans have undergone review to some extent in different contexts, all of which have determined that, in fact, yes, there is a supply issue that we need to address. That there are limited options to allow us to do that and that the projects that we're putting out there are generally reasonable in terms of trying to -- to -- to address that issue and make sure we're able to serve our customers.

It's also important to know that in addition to review by the Public Service Commission, our project is also undergoing review by the New York State Department of Environmental Conservation. There is an air permit before them that will be acted on after this process.

So again, these projects are undergoing a lot of review, a lot of public comment opportunities. And again, we continue to encourage you to participate and -- and hear your feedback. Could we go to the next slide, please?

You know, we heard a lot of feedback about why it is that we need these projects and -- and why we're continuing to ask -- to engage you on -- on topics like this. And -- and I think it's important to understand.

Our forecast is what drives all of our -- our system planning. We look at our customers' energy needs in the future. We consider economic factors and we develop models that say -- yeah, no -- no -- no worries.

Okay. We look at our customers' ener -- forecast energy needs and we develop models and look at our systems, and say is it capable of meeting our customers' energy needs when they really need it. On those coldest days when they turn on the thermostat, will we have enough heat?

And it's really important because the consequences of not having enough gas on those coldest days of the year is significant, and presents health and safety concerns, as we've seen in the not too recent past in other parts of the country.

So it's really important that we're managing to do that and making sure that you're -- that our customers can rely on us to deliver the gas

that they need. But I want to be absolutely clear, we are not trying to deliver that forecast.

We are not trying to -- our goal is not increasing gas consumption. We're absolutely interested in driving gas consumption down. We want to see our -- our customers use less energy. We want our product to be more affordable at the end of the day.

So we've made changes, changes to the way we do business. We, for example, eliminated incentives to sell more gas. I think there's a misconception there that we make more money when we sell more gas. In fact, we've changed our rate mechanisms in recent years to say that we will not. We also now have targets that incent us to in fact use less gas and outperform our energy efficiency goals.

You know, we think that's important because it aligns our customer interests with what we heard from our stakeholders, which is they want to use less energy and that's absolutely the right solution.

We're also not marketing new gas and instead, we are offering our customers alternatives.

So if you come to us today and request gas service, we will tell you about other options including ways in which you could take advantage of grants to subsidize electrification, if that's an option that you're interested in and it works for your -- for your particular heating needs.

This is not sort of business as usual. This is a different way of addressing our customers and helping them as stewards of energy networks to meet their energy needs. And it's just a -- again, a change in the way we're doing business and we've seen good progress.

Peter, if you could go to the next slide. We are investing more than $150 million in programs like energy efficiency and demand response under the terms of our rate plan and just this year, we asked for permission and were granted permission to invest more.

Our approach increasingly realized that a concept known as weatherization, really making our customers' homes, you know, easier to -- to keep warm and cool in the summer. And it provides benefit no matter how our customers ultimately choose to heat their homes.

So if they become electric customers in the future a weatherized home will only help them achieve that goal. We are targeting programs particularly to our low and moderate income customers to help them manage their energy burdens.

Again, it's the best way to deal with costs and energy issues is just to use less. And our commitments in this area are more than just aspirations. They're more than just proposals. We said we need to sort of show our commitment in this space and so we've put out some financial commitments.

If we don't meet targets in the area of energy efficiency, if we don't meet targets in the area of demand response, and referring customers to electrification, it will have significant financial consequences for us. So far, I'm -- I'm proud to say we've met our targets.

In the energy efficiency area, we've achieved over two-and-a-half times as much energy savings as we were just five years ago. Our demand response program eliminates the equivalent gas of about 150,000 homes on a peak day and that's a relatively new program that's growing exponentially.

We are referring prospective gas customers to electrification and we're exploring more non-pipes alternatives. Again, so far, we've hit the targets. I'll tell you they're increasingly challenging and I can't say that we will continue to but it will not be for lack of trying. But energy efficiency programs are not enough to meet our customers' energy needs.

Peter, if you could go to the next slide. But as we've said many times we need to recalibrate our approach to -- to capital projects, projects like the Greenpoint vaporizers. And we recognize the need for enhanced transparency, which is why we're here today talking about these programs and we've under -- we've agreed to undergo further independent assessment.

So we're here telling you we need the project. We're trying to explain, why we've agreed to undergo further independent assessment to validate what we're saying today, and get an independent view as to whether or not we need these projects and why.

The independent consultant will consider several factors including safety and reliability benefits, greenhouse gas emissions,

customer costs, and as the Judge said very importantly, public comment and feedback.

It's important to emphasize we included these provisions in our rate plans because we want to validate the need for our projects. And we want to have that -- that stakeholder engagement like this process here. So now Chris is going to tell you a little bit more about the project in particular. Chris.

MR. CANNOLLY: Thank you, Phil. Good afternoon, folks. My name is Chris Connolly. I also represent National Grid and I have responsibility for National Grid's U.S. L.N.G. operations.

Let me start by reviewing a few of the basics. What is liquefied natural gas? Commonly referred to as L.N.G. it’s a cryogenic, non-toxic, colorless, odorless liquid that is stored at atmospheric pressure at minus 260 degrees Fahrenheit.

It occupies approximately 1/600th of a volume of liquid as it would be in the gas state. A process called liquefaction cools and condenses the gas into a liquid utilizing on-site equipment for efficient storage in the tanks. It takes approximately 220 days to fill the tanks from empty.

And this is done during the warmer months.

During very cold weather, typically approaching 15 degrees Fahrenheit, liquid is withdrawn from storage, it is reheated to approximately 40 degrees Fahrenheit. And that's the vaporization process.

That gas, as it turns from liquid back to a gas state in the vaporization process is reinjected into the gas distribution system to meet our customer needs. The storage provides approximately five days of vaporization if we were running continuously at full capacity.

Now, that rarely happens. And that's an important point to make here, is that the current facility has six vaporizers and it's a very rare case that we would run the -- the -- the full suite of vaporizers.

In fact, in the current state, out of the six vaporizers, one is redundant. So at any given time, if we were to see a peak day activity, where we see very cold temperatures approaching zero degrees, we may need to operate up to five of the six vaporizers at the plant.

A little more detail I'll share in the

blue box. So the L.N.G. facility encompasses approximately 50 acres of a total 118 acre site referred to as National Grid's Greenpoint Energy Center. The tank one was constructed in 1968. And tank two was constructed in 1971. And we have a total storage of 1.6 billion cubic feet of -- of liquid volume there. And the liquefaction and peak shaving vaporization as I mentioned, we have a total of six vaporizers, one of which is redundant, and that enables us to achieve a current capacity of 291,000 dekatherms per day today.

Next slide, Pete. So let me share a little bit of context. The Northeast has the highest concentration of L.N.G. peak-shaving facilities in the U.S. L.N.G. is a critical component to National Grid's ability to meet peak heating season requirements and manage system operations.

Without on-system L.N.G. inventory, the company would be -- would be unable to meet our peak heat season requirements. L.N.G. is a supply resource, ensuring reliability for our customers. We in the Northeast sit at the end of pipelines that deliver gas to our system.

The onsite L.N.G. supply connected to

our distribution systems represent approximately 11 percent of our peak day supply needed for our customers. Again, those very coldest days of the year. L.N.G. is a balancing resource.

The L.N.G. plant stands ready during the winter heating season, allowing for fast response at those peak times. This is to ensure reliable system operations. We have full control over the utilization of vaporizers only operating when needed and the number of vaporizers that we ultimately need to support the system demand. And that's based on forecasted cold temperatures or when there are interruptions in upstream pipeline supply coming into our region.

The L.N.G. facility supports the distribution system during those peak periods of demand. This is typically in the early morning hours of those very cold days as our customers are beginning their day. Thermostats are calling for heat to warm homes, apartments, schools, and businesses. Hot water is being consumed for showering and bathing, and people are cooking breakfast. Those morning hours are critical, ensuring customer needs are fully met.

Next slide. The vaporizers 13 and 14 project utilizes the existing L.N.G. facility capabilities while adding two new vaporizers to enable more efficient use of the onsite L.N.G. supply to reheat the liquid and send it out into the existing low pressure distribution system.

The project would increase the output of the facility by approximately 60,000 dekatherms per day to a future total of 350,000 dekatherms per day. The project is wholly contained within the Greenpoint L.N.G. facility. And the project has an 18 month timeline.

I'll ask you to refer to the schematic here and I'll explain the process. The schematic that we're showing here provides an overview of plant operations. Very simply, we take the gas from the high-pressure distribution system, we cool it through a process called liquefaction which condenses the liquid -- which condenses the gas into a liquid state and we store it.

This is done during the warmer months typ -- typically in the spring and fall seasons. The tanks are designed as a very large thermos to keep the liquid chilled maintaining the liquid state at

minus 260 degrees Fahrenheit.

During the winter season, and on the coldest days of the year, the liquid is pumped from the tanks, it is reheated, this is the vaporization process, and sent out into the distribution system. National Grid has been operating L.N.G. assets safely and reliably for over 50 years. These assets are important to ensure that we meet obligations to ensure reliable energy delivery to our customers when they need it most.

Now, there's been a lot of questions in the prior meetings about the M.R.I. project and -- and -- and about the M.R.I. project in the public statements. So it's important here that we do make a distinction between the vaporizer project at the Greenpoint L.N.G. facility and the M.R.I. project that is in service as there were a number of questions as I mentioned.

The vaporizer 13 and 14 project and the M.R.I. project are fundamentally independent and have different purposes. The function of the M.R.I. project is to improve the reliability and flexibility of the existing local high pressure distribution system. The M.R.I. project does not impact supply.

Further, the projects are disconnected in time, place, and purpose. The M.R.I. project was planned long before the vaporizer project was conceived -- conceived and was intended to improve the reliability and flexibility of the existing local distribution system by creating an additional path for the gas to move through the existing local distribution system.

There is no added gas supply associated with the M.R.I. project. Phases 1 through 4 are complete and they are in service. A planned Phase 5 is not going forward, which would have allowed for the completion of the loop on the high-pressure distribution system to improve system reliability.

M.R.I. -- excuse me. M.R.I. Phase 5 would have allowed us to optimize the system performance by moving gas most efficiently on the high-pressure distribution system. Now, that doesn't mean it's physically connected to the new vaporizers. It's -- it's not. And I -- and I -- and I shared that. Or that we don't get value from the project without M.R.I. 5.

Our customers get significant value

from this vaporizer project. The vaporizer 13 and 14 project is needed to more efficiently heat the gas onsite, stored in the tank back to -- heat the liquid onsite back to a gas, and send it out on those coldest days of the winter when intrastate pipelines are unable to meet that demand. The project ensures continued reliability for our customers.

Okay. Go to the next slide, Pete. In terms of operation, I'll start at the top and make my way down. This project is designed to meet periods of peak demand as the new vaporizers do not add any additional supply, which I mentioned or cause the plant to operate more frequently.

Historical operations over the last five years is that the plant would see vaporizer operation, again, not all vaporizers. Only as needed, the number of vaporizers anywhere from 2 days to 14 days. If we expand on that a little bit and look back 10 years, we find that we use vaporizers on an average of 8 days out of a winter heating season.

Note that when we do highlight the number of days in operation, again, we're not running all of the vaporizers. We're only running what's needed. We have full control over utilization and we

will only run what's needed to support our customers.

In terms of reliability, I've already mentioned the benefits to ensure reliable operations and it is our duty to ensure customers are afforded reliable service. The project cost is approximately $65 million.

We are utilizing existing L.N.G. assets because the costs compare favorably to other projects that were considered and is able to be delivered without disruption to the community.

In terms of environmental and emissions concerns, because of the intermittent and infrequent operations, we will see reduced greenhouse gas emissions from the L.N.G. facility with these new, more efficient units in place. This allows us to downgrade our existing permit, which caps the nitrogen oxides to less than 25 tons per year, which is roughly half of the existing permit that we have at the facility.

And most importantly, from a community standpoint, all work is done within the footprint of the L.N.G. facility and as such, there is no disruption to the residents and the business owners in the area. No noise impacts, traffic impacts,

street restrictions or closures. There are no impacts to businesses conducting their normal business activities. Thank you. And I'll pass it back to Phil.

MR. DECICCO: Yeah, and -- and we'll wrap up because it's more important that we hear from you, but I'll just end where we started, which is to say we're delivering on commitments we made to the State of New York and more importantly to our customers to find solutions.

We've agreed to submit those solutions to independent review because we feel these projects are important and critical to meeting customers' energy needs. And to demonstrate that commitment we're demonstrating our cost recovery on this assessment.

We're also conditioning cost recovery on our ability to deliver the non-infrastructure programs that we've heard very clearly our customers wanted to see us doing more of.

For next steps, parties and -- and -- and members of the public have an opportunity to provide comments through these sessions and through the -- through the Commission's website as the Judge

described. We encourage those comments to come as soon as possible so they may be considered as part of this process.

After the report -- after the report is filed by the independent consultant and upon consideration of -- of all the public comments, the Commission will issue a final decision regarding the surcharge. And with that, I thank you for your attention and we'll turn it back over to the Judge.

A.L.J. LEARY: Thank you. I want to open the floor up to questions. This is different than registering to speak and provide a public comment. So if you have a question, would you raise your hand and approach the microphone to present your question to the company? Does anyone have any questions about the proposal? Okay. Here, one and two. Come on up.

MS. LEADER: Good afternoon. I have several questions but right now I will be only asking one. Is what you're -- my name is Karen Leader and I'm the Secretary of Cooper Park Resident Council's Executive Board. And on behalf of the -- our residents and the Executive Board, I -- I'm asking these questions of you, is what you are proposing as

it relates to the new -- two new vaporizers, is it in violation of the Climate Leadership and Community Protection Act? And if according to yourselves, that the vaporizers are only needed on the coldest days of the year between 2 and 14 days, are they really necessary? And isn't it still environmentally dangerous?

MR. DECICCO: Yeah. So -- so thank you for those questions. And certainly thank you for hosting us here today. So -- so the question goes to whether this project is consistent with New York's ground break -- groundbreaking climate legislation. And -- and I know that that's -- that's a tricky question and a challenging issue.

I'll say this, the Commission -- the Public Service Commission has said that -- that first of all, this -- what's fundamental to the C.L.C.P.A. are safe and reliable energy networks. Our customers and -- and residents of New York State need to understand that they have access to safe and reliable energy in the near term as we transition to -- to more sustainable heating and electric options.

This project will allow us to do that in the near term. As Chris described, the other

benefit here is that because we're -- we're installing more efficient equipment, we're actually able to operate units that burn less gas at -- at the L.N.G. facility itself, which actually lowers the emissions profile of the facility.

So for those two reasons, because -- first of all, it's important that we have reliable energy. I think it's safe to say that nothing would be more detrimental to long-term progress on these issues than having unreliable energy networks in the near term. And because the units themselves actually burn less gas, they're more efficient.

For those reasons, I think, you know, it's safe to say that it's certainly our view that these projects are consistent with the C.L.C.P.A. in the long term. Now, that said, we are also pursuing a whole bunch of other projects that collectively sort of help us move towards our C.L.C.P.A. goals including energy efficiency, demand response, weatherization, all of those non-infrastructure solutions activities like not marketing new gas connections, and encouraging customers to electrify.

Shooting -- setting targets that don't have us looking to sell more gas, in fact, trying to

get us to a point in which we're selling less gas and having that demand curve go down. I think you have to look at these things collectively in our efforts to try to achieve the C.L.C.P.A. goals. And that's why, again, while I understand that this -- this is a challenging issue we think that this project is absolutely consistent with -- with local environmental policy in New York State.

A.L.J. LEARY: Thank you. We have -- what happened to the -- Okay, come on up, second question. And I see some -- two people in the back you're on deck and you're next.

MS. ZIESCHE: Hi. My name is Lee Ziesche. I'm an organizer with Sane Energy Project. And I just had some clarifying questions around the connection between the North Brooklyn pipeline which we refer to as M.R.I. Yesterday and today you said the unbuilt Phase 5 and also the built Phases 1 through 4 were completely separate from the vaporizers, but in response to a discovery question from the -- the Department of Public Service in April, 2020, you said, "the loop created by Phase 5 addresses the flow constraint that increasing L.N.G. gas supplies from Greenpoint back to the system via

the existing 16-inch steel main will otherwise create" and also said, "none of the incremental supply alternatives that the company has been able to identify for KEDNY are workable beyond the winter 2021-'22 If they do not include M.R.I. And that was referring to Phase 1 through 4.

MR. DECICCO: Yeah.

MS. ZIESCHE: So my question is, if M.R.I. Phase 1 through 4 were shut off today, would you still be able to utilize the incremental supply? And if you can't, what has then changed since April 2020?

MR. DECICCO: Yeah. Maybe I'll just say what's -- what's changed. And -- and that's a really good question. It's only been a little more than two years. But those have been really, I think, significant years sort of in our journey on these issues.

Right. So in that -- in that interim, we develop the long-term supply plan that I discussed, that was a product of public -- a lot of public input -- input and a lot of public feedback. We are now putting out new solutions, including more vaporization, all the things I'm not going to go

through again.

But -- but what you're describing there was sort of a different time and M.R.I. -- M.R.I. 5 was actually on the table, something that we were pursuing. We are, in fact, not now pursuing M.R.I. 5 as -- as Chris described before. And Chris, why -- why don't you take the technical question around moving the gas?

MR. CANNOLLY: Yeah, absolutely. Thank you, Phil. And thank you for the question. So important to stress here that in our current state, with the Greenpoint L.N.G. plant, we have three vaporizers that are connected to the high-pressure distribution system, one of which out of those three is redundant.

Okay. That's the M.R.I. system or the North Brooklyn pipeline that you're referring to. Okay, that's existing state. We also have as existing state, we have three vaporizers that are connected to the low pressure distribution system, okay, that -- that has no connection into the high pressure distribution system.

Going forward with vaporizer 13 and 14, vaporizer 13 and 14 are designed and will be

constructed to feed into only the low pressure distribution system. So they will have no direct connection to the high pressure distribution system that you're referring to North -- North Brooklyn pipeline, and M.R.I.

MS. ZIESCHE: So you only -- you have two different pipelines that connect to the facility, not just one 16-inch? Because that's what you said in a discovery question.

MR. CANNOLLY: We have a high pressure distribution system and a low pressure distribution that -- that comes into our L.N.G. facility at Greenpoint.

MS. ZIESCHE: Those are two separate pipelines, there's a 16-inch and another --

MR. CANNOLLY: I -- I can't comment --

MS. ZIESCHE: -- that is --.

MR. CANNOLLY: -- on the diameter of those lines. But there are two different pressure systems.

MS. ZIESCHE: Okay. Well, I'm just letting you know in one discovery question, you said there is only the 16-inch pipeline.

MR. CANNOLLY: Maybe if we have a --

Pete is our engineer and he can help --

MR. METZDORFF: It's a technical --.

MR. CANNOLLY: -- answer these questions.

MR. METZDORFF: So -- so regarding the 16-inch line that's going into Greenpoint right now, that is the only pipe of that system that is going into and out of that property. There is distribution assets that go in there going back to a number of prior years, even on the low pressure system when we had the tanks there many, many years ago.

So there are other pipes that go in and out of there. The 16-inch pipe that you're referring to and that was a part of that response is the only pipe of that system that goes in and out. The vaporizers 13 and 14 cannot connect to that pipe.

So they have to go out through the distribution system, which feeds out at the normal pressure that customers take at their homes and businesses.

MS. ZIESCHE: So you can bring gas out from two systems, but in just through the 16-inch?

MR. METZDORFF: That's correct.

MS. ZIESCHE: Okay. And the -- the

distribution system that never connects at all to M.R.I.? So --?

MR. METZDORFF: No, it does not.

MS. ZIESCHE: And so why was in your discovery question you said that with -- with Phases 1 through 4, M.R.I., you will not be able to have the incremental supply?

MR. METZDORFF: So if we go back in time to 2020, when we were looking at all that, we were looking at the system as it existed and as we were trying to build it, and M.R.I. Phase 5, we --.

MS. ZIESCHE: This is referring to Phases 1 through 5, yeah.

MR. METZDORFF: I understand that. So M.R.I. Phase 5, in addition to 1 through 4 was envisioned because it would create a loop in and out of Greenpoint. It would allow us to have high-pressure gas coming in and out because it's more efficient to have two pipes instead of one pipe.

All right. M.R.I. 1 through 4 that's in service today is looping the backbone south of where the line comes in to Greenpoint today. So M.R.I. 1 to 4 does not have a direct connection to the line that goes in and out of Greenpoint today.

It ties in south of that. M.R.I. 5 is what you would need in order to have that be one continuous system. We don't have that today.

MS. ZIESCHE: But you can still increase capacity coming from the facility. Can you do that if Phases 1 through 4 were turned off?

MR. METZDORFF: Phases 1 to 4 as far as the vaporization capability that we're talking about for 13 and 14, M.R.I. 1 through 4 does not play any role whatsoever in being able to get that gas out. If you shut off the gas in M.R.I. 1 through 4 today, what you would do is you would create a pressure problem on the -- on the overall high pressure system because you need both of those pipes in order to move the gas on that system, which is independent of and separate from vaporizers 13 and 14.

MS. ZIESCHE: But if you need --

MR. METZDORFF: Yeah --

A.L.J. LEARY: Okay -- okay.

MR. METZDORFF: -- two separate -- yeah.

MS. ZIESCHE: -- to move the capacity then --

A.L.J. LEARY: Excuse me.

MS. ZIESCHE: -- they'll connect --

A.L.J. LEARY: Excuse me.

MS. ZIESCHE: Yeah.

A.L.J. LEARY: We have other people --

MS. ZIESCHE: Okay. I will --

A.L.J. LEARY: -- that need to --

MS. ZIESCHE: -- submit my I.R. to maybe get some of these a little bit more --

A.L.J. LEARY: Ms. Ziesche -- Ms. Ziesche?

MS. ZIESCHE: Yeah.

A.L.J. LEARY: You need to stop speaking when I am speaking, okay. That's the absolute rule in this room.

MS. ZIESCHE: Sorry, I thought you're done.

A.L.J. LEARY: So --

MS. ZIESCHE: I apologize.

A.L.J. LEARY: -- I think you should probably talk offline --

MS. ZIESCHE: Oh, yeah.

A.L.J. LEARY: -- to the company and let's get to the next couple of folks that are --

MS. ZIESCHE: All right.

A.L.J. LEARY: -- waiting to --.

MS. ZIESCHE: Thank you.

A.L.J. LEARY: Thank you.

MR. METZDORFF: Thank you.

MR. CANNOLLY: Thank you.

A.L.J. LEARY: I recognized two folks in the back. Come on up. The first one and then I -- all right. All right. Come on up. And I have somebody in the front. Are you -- all right, you're next and the gentleman in the back you're next. Okay.

MS. SPINDELMAN: Hi. Before I ask you my question, I just want to point out that the --

A.L.J. LEARY: Can you identify yourself? I --

MR. SPINDELMAN: Oh, sorry.

A.L.J. LEARY: Excuse me.

MR. SPINDELMAN: Sorry -- sorry. My name is Margot Spindelman. And I'm a Greenpoint resident. And before I asked my question, I just want to point out what you said about lowering emissions of the plant with the new vaporizers because they're so much more efficient.

You -- and you say in your filing that you would reduce it by 99 metric tons of Co2, which is the equivalent of taking 21.3 cars off the road in a year. So it's a -- it's a very tiny increment of efficiency.

A.L.J. LEARY: So this is a question, right?

MR. SPINDELMAN: Yeah, sorry.

A.L.J. LEARY: Okay.

MR. SPINDELMAN: Okay. Is the 16-inch pipeline that currently brings gas in and out of the Greenpoint facility considered leak prone pipe? And how much longer does the company anticipate that it can use that pipeline since it was installed in 1950?

MR. CANNOLLY: The 16-inch pipe that you're asking about coming into the Greenpoint facility is not considered a leak-prone pipe.

MR. SPINDELMAN: Okay, thank you. How much longer do you consider using it?

MR. CANNOLLY: Well, that pipe would be in service in -- in -- you know, until such time we see a reduced demand on the system, we would no longer need that asset to support our customers.

MR. SPINDELMAN: Okay, thank you.

A.L.J. LEARY: Okay. Yes, come on up. Come on up to the second microphone, so we don't have this delay.

MS. LEADER: Again, my -- I'm sorry.

A.L.J. LEARY: Go ahead. No, go ahead. Sorry.

MS. LEADER: Again, my name is Karen Leader. Isn't fracked gas a cause for global rise in methane levels? About two years ago, Karen Young, she was a spokeswoman justifying this project. And she stated that this project is like adding an extra lane to a very busy road to help reduce traffic.

While we understand the benefit that a lane being added to a busy road would have on heavy traffic, we say with the safety issues and the health issues that this project contains, our community, this community of color, and low-income communities, this low-income community we consider this project to be a race massacre, as you will be unleashing greenhouse gases in Brownsville, Bed-Stuy, Bushwick, Williamsburg, and Greenpoint. Again, I ask isn't fracked gas a cause for a global rise in methane -- methane levels?

MR. DECICCO: Yeah, so -- So -- so

what I'll say to that is we're absolutely focused on reducing methane emissions. That's why we're investing in our system to eliminate system leaks, reduce what was just referred to as leak-prone pipe, all -- all of the factors that contribute to -- to methane coming off of our system.

It's very important that we do that because we're -- we're absolutely focused on that as well. And while we're also focused on as I said before, not increasing gas sales actually lowering them. It is absolutely in our interest these days. We want our customers to be using less energy. And so I -- I appreciate the comment. But I -- I think you know, we've -- we've said a couple times already why we're focused on -- on trying to reduce gas usage not increase it.

A.L.J. LEARY: Sorry.

MR. EPSTEIN: Thank you, Your Honor. My name is Andrew Epstein. I work for Assemblymember Emily Gallagher who represents this district. Speaking actually as a legislative staffer, for the assembly member will be here tonight.

I wanted to follow up on a question around the C.L.C.P.A. that was asked earlier and you

mentioned the other projects that National Grid is involved with in helping meet our C.L.C.P.A. goals.

How much money does National Grid spend on lobbying in Albany to slow progress on our climate goals --

MR. DECICCO: I --

MR. EPSTEIN: -- and other campaigns? And is any of that money ratepayer money?

MR. DECICCO: -- no, it's not ratepayer money. And I have no -- I -- I don't know.

MR. EPSTEIN: Do you have any -- do you have any idea how much money --?

MR. DECICCO: I -- I do not.

MR. EPSTEIN: Do you stand by National Grid's lobbying efforts to slow progress in the --

MR. DECICCO: Well, it's not --

MR. EPSTEIN: -- C.L.C.P.A.?

MR. DECICCO: Yeah, I mean, I'm not sure there's a question there. But it's -- we are not allowed to --

MR. EPSTEIN: That's a question.

MR. DECICCO: -- we're not allowed to use ratepayer money for any lobbying --

MR. EPSTEIN: So you use --

MR. DECICCO: -- efforts.

MR. EPSTEIN: -- other money to lobby against the C.L.C.P.A.?

MR. DECICCO: I'm sorry. I'm trying to answer your question. We're not allowed to use ratepayer money to -- to lobby --.

MR. EPSTEIN: Can you let us know perhaps at the evening meeting how much money National Grid spends to lobby legislators in Albany against meeting our climate goals?

MR. DECICCO: I'm not sure if I have that information readily available but I appreciate the question.

MR. EPSTEIN: Thank you.

MR. VEGA: I'm up here as a neighbor --

A.L.J. LEARY: Can you provide your --?

MR. VEGA: -- of Jackson Street. My name is --

A.L.J. LEARY: Excuse --.

MR. VEGA: -- William Vega.

A.L.J. LEARY: Thank you.

MR. VEGA: I live here at 206 Jackson

Street. I serve on the Community Board Environmental Committee. I'm the sheriff of this assembly district for instance, Cooper Park. So everybody here knows me as neighbors.

This morning, I got a call from my -- my neighbors again, seeking help for their baby suffering from asthma. This community here for over 100 years has been polluted with poison for the industrialization of this country.

Cooper Housing, Cooper Park, it's named after Peter Cooper. Cooper Park was the glue factory from horses. So I -- so you have to understand this is a very educated, very angry population here. But I do have a question for clarity to the -- and I apologize, I forgot your name, to the gentlemen to my right. Did you make a statement that there's been no accidents in the plants here for 50 years?

MR. CANNOLLY: The -- the statement I made was that we've operated safely and reliably for over 50 years.

MR. VEGA: Okay. So I just want clarity, because my understanding we had an accident in Staten Island in 1983. 43 people were lost and

that was in the process of cleaning an empty tank.

MR. CANNOLLY: So that event that you're referring to was -- was not a National Grid event. The -- there was a L.N.G. tank being constructed. There was no L.N.G. involved in that accident. It was a construction project to construct a new tank that would hold L.N.G.

MR. VEGA: National Grid wasn't responsible for that?

MR. CANNOLLY: We weren't involved, no.

MR. VEGA: Who was the -- who was responsible for that? Who was the owners of that?

MR. CANNOLLY: I don't have that answer. I'm sorry.

MR. VEGA: Is that Brooklyn Union Gas who then was taken --

MR. CANNOLLY: No, it was -- it wasn't --

MR. VEGA: -- over by --?

MR. CANNOLLY: -- a legacy company. It wasn't one of our legacy companies.

MR. VEGA: Okay. So I'm just going to make the statement that that was a utility facility

that we did have an accident. That's all. So to make a statement there's been no accident for about -- in 50 years is misleading. Thank you.

A.L.J. LEARY: Thank you.

MR. FOX: My name is Steve Fox, a local resident. You mentioned specifically reducing methane leaks, something that I'm very interested in. And methane is a leading cause of our short-term greenhouse gas emissions.

So I know part of what you're doing is you're trying to replace pipes that are leak prone. Can you tell us specifically how many you've replaced and how many more miles of it you need to replace in order to replace all of them? And then I have a follow-up question.

MR. DECICCO: Sure. I -- I don't have the -- so we made a commitment years ago that we wanted to eliminate all leak-prone pipe on the system within 20 years, I'd say Pete, we're maybe halfway through that program at this point, more or less.

It's absolutely for us a priority because you know, these older mains are -- are the sources of the most leaks. Eliminating them is the most efficient way to do that.

In our last rate plan collectively, in Downstate New York, we committed to replacing hundreds of miles more than any other utility in New York State because it is important for us. I don't have the mileage left at the moment in the system.

MR. METZDORFF: I don't have it either. But we also committed in the rate case filing at the time to that, again.

MR. DECICCO: Absolutely. So for that reason, we're -- we're -- we have algorithms that tell us which pipe to replace. We prioritize safety, obviously, in the first place. But secondly, we are looking at -- at opportunities to reduce methane emissions from our -- our system.

MR. FOX: Sure. I would like to know what you have in total. Can you have the information about specifically how many you've replaced and how many more miles there are left?

MR. DECICCO: Yeah, I mean again, this information is available on our website in our -- in our rate cases. I can probably get that information pretty quickly in terms of how much is that.

MR. FOX: I'd appreciate that.

MR. DECICCO: Yeah.

MR. FOX: And do you know how much -- how much money would it cost to replace all those lines?

MR. DECICCO: I do not know. I could tell you what we're -- you know, we're -- we're generally spending on it today. We can have that information if you're interested in it. It's in --.

MR. FOX: I'd like that information if it's okay.

MR. DECICCO: Yeah, sure.

A.L.J. LEARY: I just want to remind everyone try to make sure your questions are -- there's a nexus with this proposal. Leak prone pipes, very important. Our agency is all over it; believe me. Very important issue. But let's stay with Greenpoint, okay, if you -- if you don't mind. And I probably failed to mention that at the beginning. So my apologies.

MR. DAGGETT: Good afternoon. My name is Colin Kent Daggett. I work for St. Nicks Alliance, which is located just around the corner from this development. I wanted to ask -- I appreciate the detailed descriptions of what L.N.G. is and I noticed a lack of a definition of what cost

recovery is, and I was wondering if you could provide that for the benefit of the people in the room and how much of the $65 million for the project you plan to recover through rate increases, and if you have an estimate of what that will look like for your average consumer over how many years?

MR. DECICCO: Yeah, so -- so that's a good question. So and I think it's first important to understand you know, obviously we only recover the asset if it goes into service. And we don't know when that's going to be yet.

So we -- even if under best cases assumption, including it -- if it took us 18 months after having gone through this process, we wouldn't be looking at you know '24-'25 by the time we got this -- this asset put into service. And then the asset goes into our rate base.

But what we've done here is that we're also going to condition our recovery on meeting our energy efficiency demand response electrification goals. So if we don't hit those targets, we could lose as much as 20, 40, 60 percent in a given year of our -- of our cost recovery.

We really wanted to show that

commitment to those programs and so we've further conditioned recovery. But assuming it went in service, assuming we hit all of our targets, for our non-heat customers it would be about four cents a month in the first year, and about three cents a month in the second year. For our heat customers, the cost associated with this project would be about $1.35 a month going down to 88 cents a month in the second year.

MR. DAGGETT: Okay. Thank you.

MR. DECICCO: Sure.

MR. MAGOLIS: Good afternoon.

MR. DECICCO: Good afternoon.

MR. MARGOLIS: My name is Rob Margolis. I am another local neighbor here, part of the Jackson Street Block Association and I wanted to ask a clarifying question.

MR. DECICCO: Sure.

MR. MARGOLIS: I know that you clarified that you were not involved in this previous accident. But I do want to ask that there being a disconnect between what I have here is an article from Staten Island Advance --

MR. DECICCO: Sure.

MR. MAGOLIS: -- which talks about the legacy of this explosion. 40 people lost -- whose lives were lost that led to there not being two more facilities being built there. And I don't think they would probably approve anything happening on Staten Island as a community anymore.

The description given at that point was that there was trapped gas inside the facility that led to the explosion. And I think people do appreciate hearing the difference between a construction issue and explosions and I think we're talking about the building too more.

So I wanted to ask if you could clarify again. You said that there was no construction or it wasn't about a gas facility tank. But I do think it's worth clarifying what the details are there and what that had to do with something that could overlap with what we're having -- having to do here.

MR. DECICCO: Yeah. I think first it's important to clarify, we're not talking about building a new tank here, or even doing any work on the tank itself. All of this work would happen outside of -- of the tank itself, will be adjacent to

it.

That was a tragic construction accident. And I know there was issues with -- with you know, tragically, people being in the tank at the time doing work and I believe the roof collapsed on top of them and caused a horrible tragedy.

Again, we're not talking about doing tank work here whatsoever. This is an entirely different project. Chris, I don't know if you have anything to add to -- to that.

MR. CANNOLLY: Yeah, just a little bit. Again, it was a, you know, terrible construction accident. There was no L.N.G. or natural gas involved. Right. The gas that's referenced in that article refers to the welding they were doing and the gas atmosphere of the hot work they were doing inside that tank at the time the accident occurred. It had nothing to do with natural gas, had nothing to do with L.N.G.

MR. MAGOLIS: Thanks.

MS. POOL: I appreciate answering the questions. And I see you've done a lot of -- obviously, a lot of research, but --.

A.L.J. LEARY: Your name?

MS. POOL: I'm sorry?

A.L.J. LEARY: Your name?

MS. POOL: Oh, Jane Pool. And I'm wondering if you researched coming to this neighborhood. We have one of the biggest oil spills, I mean, three times bigger than the Exxon Valdez. We have hundreds of factories that have to be registered as right-to-know sites.

We have the biggest sewage treatment plant in the Northeastern United States. We have most of the City's waste transfer stations. We -- and we have as a result, asthma, cancer, lots of autoimmune diseases, health -- not enough health studies.

But all the health studies are pretty dismal. And I just don't understand how -- how you could have researched that if you did, or if you didn't, and you did -- you did the wrong thing. Don't do this here. It's not --

MR. DECICCO: Well -- Yeah. Yeah -- yeah.

MS. POOL: -- it feels wrong. It feels wrong.

MR. DECICCO: Yeah, and I -- I just --

I'm not sure. The question is, yes, I mean, obviously, we're familiar with -- with the history. We've been operating National Grid and Brooklyn Union and been operating in this community for a long, long time.

MS. POOL: So why here? I'm sorry, why here?

CHAIR CHRISTIAN: You want to answer that?

MR. DECICCO: Why -- okay, why here?

MR. CANNOLLY: Why here?

MR. DECICCO: Yeah, the -- the short answer is because this -- this asset again, we're trying to leverage assets that already exists and use infrastructure that's already been installed instead of trying to put new tanks for instance, somewhere else, right? These -- these were existing tanks.

This investment we're making lets us use those tanks that are already there more efficiently, right. So that's why this particular project is located here because honestly it wouldn't bring us value to do it anywhere else. We really need to do it next to the tank in order to get the gas out quicker. That -- that's why it's

locationally --

MS. POOL: So the value is --

MR. DECICCO: -- within that footprint.

MS. POOL: -- money over people?

MR. DECICCO: No -- no -- no, it's money over people this is -- this is --.

MS. POOL: It feels like it.

MR. DECICCO: Well, I appreciate that feedback. But this is the -- again, we're trying to be efficient here and -- and -- and -- and in doing that use assets that already exist. And that's why it's located you know, in that -- in that footprint of the existing facility that's already you know located down the street.

MS. POOL: Thank you.

MR. ROBLES: Good afternoon. My name is Benjamin Robles, Sr.

MR. DECICCO: Good afternoon.

MR. ROBLES: And I'm the Board Director of St. Nicks Alliance. I was just wondering about your -- your -- your study. If -- in the event that there is a leakage on your vaporizer -- vaporizer or the M.R.I. components, what are the

effects of the exposure and how -- long term especially the people that have underlying conditions? Also, what emergency procedures do you have in place in the event of that leakage?

MR. CANNOLLY: So, yeah. Thank you for the question. So I'll start with reinforcing that the -- the vaporizers, they are a proven technology. They are operated infrequently and only on an as-needed basis.

So we don't have a cause for concern or a reason for concern to have leaks at the vaporizers. They go -- they undergo annual inspections and maintenance. And we have a long history of operating vaporizers at our L.N.G. facility here at Greenpoint.

With respect to M.R.I., we -- we conduct regular leak surveys, not only for the M.R.I. pipe, but for all of our high pressure and -- and low pressure distribution systems across all of our network. You know we take leaks very seriously and -- and we respond to leak calls, and odor calls, and -- and we make sure that we make the necessary repairs.

And we're continually investing in our

infrastructure, as Phil mentioned earlier, to replace the leak-prone pipe to reduce the number of leaks that we have out on the system. And the last point I'll just reinforce here, with respect to leaks at the L.N.G. facility.

We're -- we're under very stringent code regulatory requirements. We have leak detectors. We have gas detectors throughout our facility. And you know, anytime that -- that we -- we may have a leak, which we rarely do, we address it immediately at the L.N.G. facility.

A.L.J. LEARY: Before you go to the first question. Doesn't the facility have some emergency protocol, you know, if something happens? Can you address that? Because I think that's what --

MR. ROBLES: Yes.

A.L.J. LEARY: -- the gentleman was asking --

MR. CANNOLLY: We do very --

A.L.J. LEARY: -- emergency protocol.

MR. CANNOLLY: -- yes, very much so. Thank you, Judge Leary for clarifying -- helping to clarify that. So we work very closely with F.D.N.Y. And we have emergency response procedures. We have

regular drills that we conduct in partnership with F.D.N.Y. And -- and so we ensure that they understand and know our assets and how they're operated.

And -- and we have a very extensive plan and we review annually that plan. And -- and we conduct drills regularly with F.D.N.Y. They're -- they're almost in our plant almost monthly conducting inspections and drills with us.

So very robust plan, great partnership and -- and, you know, that partnership goes both ways between the company and F.D.N.Y.

A.L.J. LEARY: I may be mixing this up with another utility but I think -- is there a training program as well for responders or personnel?

MR. CANNOLLY: There -- there -- there is a training program --

A.L.J. LEARY: Okay.

MR. CANNOLLY: -- yes, Judge Leary. There's a training program that -- that we employ. Again, when we have these drills with F.D.N.Y., that's part of our training program as well, you know, fire departments from across the Northeast.

I mentioned earlier in the

presentation that, you know, we have the largest concentration of L.N.G. facilities in the Northeast. There's actually a fire -- L.N.G. Fire Training Academy in Massachusetts that a lot of firefighters go to for additional training above and beyond the training that we provide.

A.L.J. LEARY: I think there's a first question that was asked however, right, there's another question? If you guys remember what that is?

MR. DECICCO: That was the leaks I think, Chris.

MR. CANNOLLY: About the leaks I -- I think I addressed that.

A.L.J. LEARY: No, it's about those with underlying health conditions and exposure issues.

MR. CANNOLLY: Yeah. Again, --

MR. DECICCO: Yeah.

MR. CANNOLLY: -- from this facility because there's no -- in our view, incremental leaks because the plants operate more efficiently and -- and emit less -- less gas because it combusts less gas. You know, we don't see this contributing to that issue at -- at all.

A.L.J. LEARY: Okay. Do we have -- come on up. But this is going to be the last question unless you -- you -- all right, come on up. Come on up. We really need to move into the public statement part of the -- because I know you're all just chomping at the bit to make some statements. So -- but go ahead. Make the questions short.

MS. LEADER: Okay. Again -- again, my name is Karen Leader. We all know that renewables are safer, cleaner, and healthier for our environment and for the health of all New Yorkers. This should be a big concern of yours, especially because if this is to proceed, the lives of many of our residents, particularly our asthma patients, children, and our pets will be at risk.

It is imperative that the health and environment of all New Yorkers and not some be protected. If you think that money is more important than our environment and the health of individuals, then hold your breath while you're counting your money.

A.L.J. LEARY: Okay. I made the mistake. I made a mistake. This is not the public statement portion of the hearing. This is questions.

If you do not have a question, do not come up to that microphone because I'm now going to cut you off.

Next, we're going to go to that very thing but I'm assuming you're waiving your right to appear next on the public statements. Is that -- or you want to come up? Okay.

MS. BLOODGOOD: All right.

A.L.J. LEARY: So go ahead. Do you have a question?

MS. BLOODGOOD: Hi. I have three questions.

A.L.J. LEARY: Okay.

MR. CANNOLLY: Okay, yeah.

MS. BLOODGOOD: My name is Lisa Bloodgood. My questions are based on the presentation you gave and then a follow-up to some other question that was asked previously. So when you really simply you said that fracked gas is non-toxic, can you explain that a little bit more?

You -- the gentleman on the right said that when talking about the benefits of the project or describing L.N.G., in -- in general, saying that it's brought into the community as non-toxic. And just -- just explain how fracked gas is non-toxic.

MR. CANNOLLY: Well, and -- and I -- and I refer to not fracked gas or natural gas I referred to L.N.G. as cryogenic, colorless, odorless, and non-toxic.

MS. BLOODGOOD: Yes, so it is methane, correct?

MR. CANNOLLY: It is methane, 100 percent methane, it's L.N.G. That's correct.

MS. BLOODGOOD: And methane does have toxic issues related to it, right? If I were to breathe in methane -- pure methane, I would die, correct?

MR. CANNOLLY: I can't answer that. I'm not a medical expert. But if you're --

MS. BLOODGOOD: Okay, all right.

MR. CANNOLLY: -- if you're -- you're in a room with just methane --

MS. BLOODGOOD: Pure methane --

MR. CANNOLLY: -- there'd be no oxygen in theory, so.

MS. BLOODGOOD: Yeah. So -- so there is a toxic element to this gas. My second question is in the proposed development of the tanks, the expansion of the L.N.G. in the facility you said

there would be no traffic implications at all. You're saying everything is already on-site? There'll be no trucks bringing people, equipment, anything at all. So there's no traffic impact?

MR. DECICCO: Yeah, so -- so just clarification. Yeah, I mean, absolutely. Equipment needs to be delivered, and people need to come to work to do the work.

MS. BLOODGOOD: So that's --

MR. DECICCO: When we talk about traffic, though typically what -- what our customers in the communities find I think most impactful is when we're actually operating in the streets you know, digging up the streets, disturbing traffic, impacting businesses and the like.

MS. BLOODGOOD: Well --.

MR. DECICCO: So we're distinguishing it from -- I'm sorry to interrupt, but we're distinguishing in that project whereas most projects really have, I think, some very obvious community traffic impacts. This -- that has an indirect -- this has an indirect impact to the extent that there will be --

MS. BLOODGOOD: So --

MR. DECICCO: -- traffic.

MS. BLOODGOOD: -- no street closures but more traffic and more truck traffic in this already overburdened community?

MR. DECICCO: I mean, in the -- in the grand scheme of truck activity, that's space limited. But yes, obviously --

MS. BLOODGOOD: Yes.

MR. DECICCO: -- there has to be deliveries made to some extent --

MS. BLOODGOOD: All right.

MR. CANNOLLY: -- and on a temporary basis while construction is occurring over an 18-month period.

MS. BLOODGOOD: So 18 months of increased truck traffic to the community. It would be good to know how many trucks do you anticipate and what that real statistic will be.

MR. DECICCO: Yeah, I mean, that is an active yard of ours. We have a lot of vehicles moving in and out of it just to serve customers you know, every day, so. But there would be some small amount of trucks relative to -- to the rest of the activity on that street in particular --

MS. BLOODGOOD: Okay.

MR. DECICCO: -- just to deliver.

MS. BLOODGOOD: We do have too many trucks in this community at this time.

MR. DECICCO: I'm quite sure, yeah.

MS. BLOODGOOD: All right. And then my third question is related to something somebody else asked earlier about existing assets and wanting to take advantage of what's already in the community and I just do not understand why the biogas project from the Newtown Creek wastewater treatment plant has been stalled for so many years, is not online and that would be providing renewable gas to the community. And why is that always taking a backseat to the M.R.I., to the L.N.G.?

MR. DECICCO: So there's no bigger proponent of that project than us. Like we -- we -- you know, we're -- we're really happy to see that online. We hope to make an announcement in that space really soon. I mean --.

MS. BLOODGOOD: That's what I've been hearing --

MR. DECICCO: Yeah.

MS. BLOODGOOD: -- every six months --

MR. DECICCO: Yeah.

MS. BLOODGOOD: -- for about six years.

MR. DECICCO: Yeah. And -- and --

MS. BLOODGOOD: So.

MR. DECICCO: -- it's obviously taken longer than we had hoped. But -- but there's --

MS. BLOODGOOD: Right.

MR. DECICCO: -- again, there's no bigger proponent for the -- for the opportunity to develop projects like that, than National Grid. It's a huge opportunity to take methane that would be flared otherwise in the atmosphere, repurpose it, and avoid having to use fossil natural gas that, you know, would otherwise have to be delivered here to Downstate New York.

So I -- I agree to it completely. That's absolutely the kind of thing we want to see way more of and we hope to deliver much quicker in the future.

MS. BLOODGOOD: Well, I -- I just want to say because I -- I have to leave suddenly. And I want to just say to you all, it would be really great if we were focusing more on capturing the methane

that's coming from all of our wastewater treatment plants around the city instead of building new fracked gas infrastructure. So that's sort of my comment later.

A.L.J. LEARY: And I just thank you and the agency -- our -- our department is absolutely pursuing this. This is really being explored in -- in rate cases and -- and with the companies that can make it happen, it is, I will tell you --

MS. BLOODGOOD: Okay.

A.L.J. LEARY: -- for sure.

MS. BLOODGOOD: A little faster.

A.L.J. LEARY: But thank you.

MS. BLOODGOOD: Thank you.

A.L.J. LEARY: That's a very good point. Thanks.

CHAIR CHRISTIAN: And I do want to add, given the number of people here, I -- I want to encourage you all to engage in the Climate Advisory Council Process. We actively discuss renewable energy, R.N.G., and a variety of other things in an ongoing basis and I think it will be very informative and helpful to understand where we're going overall in connection to this project and potentially others

that may come. So I just want to point that out to the group. Thank you.

A.L.J. LEARY: That's good. Go ahead.

MS. LEE: Hi. I'm actually here for a public comments. I didn't realize that this was the question section.

A.L.J. LEARY: Yeah, can you -- did you register?

MS. LEE: I did.

A.L.J. LEARY: You did?

MS. LEE: I just did it with coming in.

A.L.J. LEARY: Perfect. We're going to move right now to that but you have to stand behind the folks that registered first. If you -- oh, you have to -- you have to leave, are you saying?

MS. LEE: I -- I do. Yeah, I'm in the middle of a workday. I just came for a minute.

A.L.J. LEARY: Oh, do we have a -- what's your name?

MS. LEE: Maggie Lee.

A.L.J. LEARY: Okay. I have you. Go ahead.

MS. LEE: Okay.

A.L.J. LEARY: Wait a minute. Hold on a second. You're going to have to wait for the transition on the record.

MS. LEE: Okay. That's fine.

A.L.J. LEARY: Okay?

MS. LEE: Yeah.

A.L.J. LEARY: So if you can just sort of hang there and sit down for a moment. You'll be first up; I hope no one minds. Ms. Lee has to go back to work, but there's a couple things I want to highlight here and as we move into the public statement hearings, I want to talk about the purpose of the hearing and the nature of the hearing. And I also briefly want to describe the process that you're engaged in, so there's no misunderstanding about it.

It was the proposal for vaporizers 13 and 14, they filed it with the Commission and that initiated this process. And it is a proposal that -- very revolutionary is going to be subjected to independent consultant review as you heard from the company.

This is very important for the public because you can have confidence that there's someone with new eyes on this project. It -- and it's

important for you to also understand the criteria that's -- that independent consultant is going to apply in looking at the project.

Guess what, the public input is one of those criteria in addition to cost, and whether it's needed, and so forth as the company discussed to you but I want to highlight how important it is that you are engaged here today because the independent consultant, I believe, should be here today. Is that Mr. Decicco is our independent consultant here?

MR. DECICCO: It was -- that was my understanding, yeah.

A.L.J. LEARY: Oh, okay, great. He is listening and he will have this as will the Commission. This is being treat -- this public statement hearing and all the information you've been given, all the questions are going to be in a transcript that's posted on our Department website.

So this is important that you know the criteria and it -- it includes greenhouse gas emissions and so forth. So following the independent consultant's review, there will be a formal written report that will be filed on or about October 15th or so and that report will be again available to you for

you to read and look at and take apart.

And then you can also submit written comments after that into our Agency website. And in the notice that I have available at all the tables, it will tell you how to provide those comments. Our website, by the way, is www.dps.ny.gov. And you search case number 19-G-0309 make sure that that's what you're using in the search function.

MR. DECICCO: Okay.

A.L.J. LEARY: So after that the Commission has the independent consultant's report and that report may be, you know, a little ambiguous. It may firmly recommend. It may say don't do it, don't build vaporizers 13 and 14 for these reasons.

No matter what that report says the Commission has an independent obligation to, in its own expertise, make a decision. So even if the independent consultant says yes, the Commission can still say no or modify the yes.

So it's important for you to see down the road what can happen here. And there's another part of this process I want to highlight for all of you and that is a separate process going on before the Department of Environmental Conservation.

So that's a public process too. And on the company's website which is greenpointenergycenter.com, you can get further information about the D.E.C. process because they will be -- the company has applied for an air pollution permit. And that's what's undergoing review before a separate agency.

They're not here. That's a completely separate process but again it's a source of information for you. So having said all that, I want to make sure that everybody understands what this hearing is and what it is not. I can't answer and -- Chair Christian cannot answer your questions. They are for the company and you've asked them.

We're moving now into the statement. Okay. So please, our failure to answer does not mean -- we know -- mean no offense to you. Make sure that you limit your remarks, we have several speakers, to about three minutes. In order to get through all of you I need to make sure that you limit your remarks because you can always file a written comment with the Secretary.

As you know, the Court Reporter is here. So you want to be speaking slowly. Do not

speak over each other. She needs to hear this in order for that transcript to have a little bit of integrity, so to speak and be accurate. I think that's it for -- I'm going to call those registered to speak first.

But Ms. Lee has -- I'm -- I'm a working woman, myself. I'm taking the opportunity to allow her to go first. I hope no one minds. I see two questions. Go ahead, gentle -- the gentleman in the back. What -- what are you -- are you call -- what -- I'm going to call people up. Okay. So I'll call your name.

Oh, incidentally, if you have not registered to speak, that is, if you have not filled out one of these cards, please come up and fill one out or give it to the young lady sitting at this table with the blue tablecloth. That way you'll get in the queue and I will call your name. Ms. Lee -- I'm sorry, a question here?

MR. ROBLES: Yes, yes. I just wanted to know what's the -- the difference between the statements and the questions.

A.L.J. LEARY: I'm not quite hearing what you're saying.

MR. DECICCO: Judge, the question -- the question was what's the difference between a question and a statement.

A.L.J. LEARY: Your question is designed -- was designed to get information and clarity from the company. Your statement is to provide the Commission and the independent consultant with your input about the proposal. Do you like it? Do you hate it? Do you think this, that, why, that's what your statement is. Give us your position on this proposal, okay.

Questions were designed to elicit information. Statements are designed to provide the Commission and the independent consultant with your position on the proposal. Okay. And by the way, the proposal is also available on our website, the written proposal itself, where you can get a lot more information as in addition to on the company's website. So Ms. Lee proceed.

MS. LEE: Hi, thank you for allowing me to speak first, I really appreciate it. My name is Maggie Lee. I live a few blocks away. I oppose the rate hikes to build the L.N.G. vaporizers here. I grew up in this neighborhood. I remember the red

and white tanks that were decommissioned maybe 20 years ago.

My friends and family have suffered health effects due to the history of pollution in this neighborhood including asthma and cancer. I myself have a couple of autoimmune health problems that could be attributed to environmental pollution. This community has been writing comments and protesting against the vaporizers in the pipeline for several years now.

And we are very disappointed that the State is not conducting a more thorough environmental and safety review that the public really wants. And that's why all of us have taken time out of our day to be here today.

You're breaking both City and State law that states that we should be curbing greenhouse gas emissions and not putting a larger burden on people of color and disadvantaged people who are already suffering.

There was a moratorium on completing the last phase of this project last year. And I'm wondering if interest has been renewed because Liquefied Natural Gas, fracked gas, natural gas has

gone gangbusters through -- due to the war in Ukraine. You are taking advantage of all of us here for a brief profit opportunity during the international tragedy.

A.L.J. LEARY: Thank you -- thank you. Are you going to -- are you going to jump in front of the line because my next speaker is Karen Leader?

MS. LEADER: Oh, I already spoke. I didn't realize that.

A.L.J. LEARY: All right. I'm going to skip you. I'm so happy you said that. Thank you, thank you.

MR. DECICCO: Okay.

A.L.J. LEARY: Our next speaker is Elijha Fye. Mr. Fye?

MR. FYE: Yes, good afternoon. My name is Elijha Fye. I'm vice president of Cooper Park Resident Council. And on behalf of Cooper Park Residents and the Cooper Park Community, I'd just like to say that we are -- we are a hurt community being victimized by the different pollutants that this community is receiving -- receiving, one of the ladies had already spoke on it about the oil spill, the -- the trucking coming in and out of the com --

community.

And also, I'd just like to say this vaporizing and the -- the fracking has not really been clarified. I mean it's -- it's been spoken on, but it's not been spoken on in layman's term, let me say that.

So there's a lot of -- I'm not understanding what exactly are you all -- you all doing but let me say this.

That -- these vaporizers and everybody should notice is -- is harming this community. I don't care how much gas is being released from the vaporizers. It's harming us. It's -- it's -- it's -- we're already hurting. You know, we're already hurting.

I've been here for 68 years and I've watched so many people of color, medical conditions because of the soil, the -- the air that we're breathing in from these vaporizers that nobody had any idea that was going on up until like the 2000s.

I'm -- I'm going over to Kosciuszko Bridge you see the -- the flames spewing out. We had no idea that we was being poisoned. We was being, you know, disproportion in health because of these

things.

And now, here I am hearing that -- that you want to put two more up, you know, that you want to put two more up, you know, that -- that all the sugar coating that you're saying is not helping us.

UNIDENTIFIED MALE: You're right.

MR. FYE: All of -- all of the -- the -- the trees that you want to bring in that bring help beautify the air, you know, all that's fluff that's good but that's not helping us to live -- to live here, you know, in a -- in a -- in a -- what's happening with solar panels, what's happening with all the green stuff that were coming up with that.

My God, there's a hole in our ozone. We're dying. We don't need -- I -- I understand your purpose of the gas, but let's come up with some other solutions besides that. There's other ways you can make money, you know, besides harming us.

UNIDENTIFIED MALE: Right.

MR. FYE: You know, we're only a small fraction of the community. What happens -- what happens, God forbid, human error or -- or technical error, something goes wrong in it and explodes. I

understand you have people in place for all of that. But what happens if it happens? What happens to us?

UNIDENTIFIED MALE: Right.

MR. FYE: That part what happens to us?

UNIDENTIFIED MALE: Right.

MR. FYE: The minions. That's all I have to say. Think about us.

MS. LEE: Yes.

UNIDENTIFIED MALE: Right.

MR. FYE: You know, have some compassion.

UNIDENTIFIED MALE: Right.

MR. FYE: You know, this is serious. My God, I have people that passed away because of environmental pollution.

UNIDENTIFIED MALE: Right.

MR. FYE: You know, come on when is it going to end? Why does it have to end here?

MS. LEE: Yes.

MR. FYE: You know, the vaporize -- what if we become vaporized because of the vaporizer. That's all, I'm just -- I'm confused. And I'm not getting the information I think that we deserve to be

given instead of a lot of fluff. Thank you.

A.L.J. LEARY: Thank you. Benjamin Robles.

MR. ROBLES: Yeah, I can also do it online, correct?

A.L.J. LEARY: Thank you, yes. All good. Brad Daniel, do I have that right?

MR. DANIEL: No, ma'am. Hello, everyone. And members of Public Service Commission for this moment.

A.L.J. LEARY: Can you hold that either one but as long as you speak in because we want to pick up your --

MR. DANIEL: Yeah. Hello, members of Public Service Commission, my name is Bruno Daniel. I'm Senior Aide to the Chief of Staff at the Brooklyn Borough President's Office. Thank you for taking the time to hold these hearings on National Grid's proposal to build a new L.N.G. gas vaporizers.

I have a statement from Brooklyn Borough President Antonio Reynoso. He says as Borough President, this issue is important to me. Not only because I care deeply about advancing climate resiliency and environmental justice in the

Borough. But also because the site is located in the district I represented as council member for eight years.

This community is my home. And I'm here today on behalf of my neighbors in Williamsburg and Greenpoint. And especially my neighbors here at Cooper Park Housing to ask you to deny this application. The C.L.C.P.A. sets ambitious targets for transitioning away from gas and electrifying New York's building stock.

Given that context, it makes no sense to allocate public dollars to support fossil fuel infrastructure that will be outdated before it is even completed. And likely only used between two days and two weeks per year. We should instead be focused -- be focused and spending on supporting an equitable transition away from fossil fuels completely and using new green technology to meet our energy needs.

That this proposal calls for a rate hike when our working families are already struggling to keep up with increased energy costs is absolutely unacceptable. The Public Service Commission should support the climate justice working group's

recommendation in the C.L.C.P.A. drafting scoping plan that no new fossil fuel infrastructure permits be approved.

Especially not in designated disadvantaged communities like this one. The community surrounding Newtown Creek, a federally designated Superfund site has suffered from environmental racism since its funding -- founding. The toxic legacy of our industrial waterfront includes one of the largest oil spills in U.S. history.

Yet, another Superfund site of chlorinated solvent plumes, the over concentration of truck-dependent facilities such as waste transportations and air polluting facilities such as National Grid's. Our community and especially our public housing residents have experienced associated health impacts for too long and now we're saying no more.

Thank you again for holding these hearings. I hope you'll take what you hear yesterday and today extremely seriously. We need your help and support to uphold the principles of the C.L.C.P.A. and ensure green future for our communities. Thank

you.

A.L.J. LEARY: Thank you. William Vega. William Vega?

MR. VEGA: Thank you for this opportunity. What I heard here is these assets are being built here because they sit -- they exist. This utilities' assets were put by design in a black and brown community because we have no voices, our lives don't matter.

To continue building up on these pipes, gas, vapers, whatever you want to call it, is criminal. People are in the hospital, people are dying. So that's what it's bottom line. It shouldn't be about the profit of National Grid, about better life for all of us. And why are we using technology that's old when we have new technology that can make all of us breathe and longer and healthier lives.

So continuing this project in my opinion is criminal. Thank you.

A.L.J. LEARY: Thank you. Annel Hernandez. Annel Hernandez?

MS. HERNANDEZ: Good afternoon, everyone. My name is Annel Hernandez and I'm the

Director of Climate and Environmental Policy for Council Member, Sandy Nurse, representing District 37.

I'm also an Environmental Justice advocate and a resident of Bushwick with the North Brooklyn pipeline running just a few blocks from my home.

District 37's neighborhoods are right in the path of this fossil fuel pipeline including both Bushwick and Ocean Hill. We demand that the Public Service Commission and the State Department of Environmental Conservation reject National Grid's continued construction of fossil fuel infrastructure both pipelines and L.N.G. vaporizers in our communities.

Here are some key reasons why these projects -- why these projects should be denied: compliance with the C.L.C.P.A. The New York State Climate Leadership and Community Protection Act set a clear greenhouse gas emission reduction target as well as environmental justice mandates.

The C.L.C.P.A. states that New York must reduce greenhouse gas emissions 40 percent by 2030, 85 percent by 2050. The C.L.C.P.A. also states

that New York must prioritize measures to maximize net reductions of greenhouse gas emissions and co-pollutants in disadvantaged communities.

And encourage early action to reduce greenhouse gas emissions and co-pollutants. The C.L.C.P.A. directs the State to address climate in a manner that prioritizes climate and environmental justice. These regulations governing New York's programs must reflect the intent of the C.L.C.P.A.

The current proposed project is fundamentally at odds with and fails to integrate the requirements established under the law. National Grid clearly fails to adequately address how the project complies with either the emission reduction or equity targets in the C.L.C.P.A.

To the extent and inconsistency or an interference is found to occur the State must provide a detailed statement and justification as to why such limits and criteria may -- may not be met and identify alternatives.

Furthermore, in permitting decisions the State is required to ensure that a project shall not disproportionately burden disadvantaged communities. And I'm not sure that this project does

that.

I also served on the C.L.C.P.A. climate action advisory panel for power generation where we discussed and analyzed recommendations for energy -- for the energy sector. To me, it is clear that this project is not in line with the renewable energy future of both New York City and New York State.

In the past year or so we have seen that New York State has denied permits for peaker power plants aiming to re-power or really just to build a new -- entirely new power plant citing the C.L.C.P.A. Another peaker plant even withdrew their application to the Public Service Commission.

These peaker plant owners had similar arguments to this project focusing on peak demand and reliability. But ultimately that was proven to be a hollow argument. And as we transition to renewables and modernize our grid, it is clear that we don't need this fossil fuel infrastructure.

Even in your presentation today, it was unclear what projections you used for the future of gas use. And whether it accounts for all of these recent laws and shifts -- in shifts and goals of

energy efficiency and building electrification. There's also compliance with the City's Climate Mobilization Act or Local Law 97.

These laws must be driving the future of our energy sector. And this project is taking us backwards. We also need to be focusing on assessing the vulnerabilities of our waterfronts. National Grid's proposed project fails to address these coastal vulnerabilities. The State's community risk and -- Community Risk and Resiliency Act requires the consideration of future climate risk due to sea level rise, to storm surge, and to flooding.

The Greenpoint Energy Center is located right in both the FEMA 100 year and 500 year floodplain as well as the hurricane storm -- storm surge zone. We've seen with Hurricane Katrina, Sandy, Harvey, Maria, flood water inundation can dislodge chemicals, fossil fuels, and other hazardous materials and hurt the -- the nearby communities.

We see that these storms are intensifying. We have to make sure that we have -- we protect communities that are already overburdened with contaminated lands, noxious infrastructure, hazardous -- and hazardous storage sites. I also

want to highlight pub -- inadequate -- inadequate public communication.

While I'm happy to be here today and present my testimony to you,

I live a few blocks from the pipeline and I was never notified until it was already built through my neighborhood. I think that there needs to be a greater environmental justice review of this project. It is frustrating that fossil fuel infrastructure is being prioritized over other critical infrastructure.

In Bushwick we have the M.R.I. pipeline running through our streets while our storm water infrastructure is aging and insufficient. We continue to face climate driven flash flooding. And yet here we are today discussing more fossil fuel infrastructure. Again, we ask that the Public Service Commission reject this proposal and require that National Grid offer alternative proposals that offer greenhouse gas emission reduction, energy equity, sustainable energy systems, and electrification, and of course does not lock Brooklyn into more fossil fuel infrastructure.

I also want to add that Council Member

Nurse is working to implement universal curbside composting. And so we look forward to discussing the potential of anaerobic digestion to displace the use of fossil fuels.

We have limited land to build sustainable, resilient, and renewable -- to build a sustainable, resilient, and renewable future for New York City. This land in Brooklyn along Newtown Creek which has already been devastated by the fossil fuel industry should now be part of the solution and not the problem. Thank you.

A.L.J. LEARY: Thank you. Carla Yuen. Carla Yuen. I hope I'm saying that correctly.

MS. YUEN: That is.

A.L.J. LEARY: Thank you.

MS. YUEN: Hi, everyone, my name is Carla Yuen. And I'm a resident of Greenpoint and I oppose this project. This was already mentioned earlier but Greenpoint is home to not one but two Superfund sites. I cannot grow food safely in my backyard and I need air filters to breathe in my home.

How do you weigh cost efficiencies against unusable soil, unbreathable air, medical

bills, and people's lives? I also organize volunteers at the McCarren Park Demonstration Garden, a site paid for by Exxon Mobil settlement for the oil spill at Newtown Creek.

So I'm reminded every time I tend to the garden that the consequences of fossil fuel infrastructure leave a long-term scar on the place that I live, the water I drink, the air I breathe.

And now you're asking to build more fossil fuel infrastructure and leave the brunt of the cost to a neighborhood with one of the largest environmental disasters in the U.S. And to those who are already disadvantaged, forcing higher bills on us to pay for an already sun- setting industry.

I ask that you instead protect the city and its people by rejecting this plan and investing in renewables and also plug-in public renewables.

A.L.J. LEARY: Thank you. Leonard Reyes, Leonard, welcome.

MR. REYES: It's Leonides.

A.L.J. LEARY: Say it again.

MR. REYES: Leonides.

A.L.J. LEARY: Leonides, okay.

MR. REYES: Leonides Reyes, yeah. I'm -- I'm speaking on behalf from the People's Firehouse -- the People's Firehouse in Greenpoint. There's been the EC-212 been closed for like 15 years. We've been planning to keep it open -- try to keep it open and the Mayor's administration don't want to open it up.

There's been threats of other firehouses in Williamsburg that might get closed during the past. And if we don't have these firehouses open, I don't know how they could supply safety to you guys. And it's not -- you know, I don't trust on a private fire safety people to, you know, look over your pipes.

I prefer my own fire fighters in our Williamsburg securing those pipes. Okay. And I'm speaking on behalf of the People's Firehouse that threatening to -- to -- you know, I don't know if they're still threatening to close these firehouses and we would -- this is the only district that -- that the -- the firehouse has been threatened to -- to close and for good.

I don't know if is that those plans are still in the future or they're still on -- on --

on the table. And we've been fighting to keep these firehouses open, especially in this district. If we don't have any firehouses, we don't have no safety. Remember the Titanic. They said it was safe, but it went down.

That's what it's all about. This -- this is -- this is it; you know. And I don't -- I don't trust a -- a private agency to secure your pipes. That's not going to happen. Don't build these top -- don't build them -- don't build these top -- these pipes, please. Don't go for it. If we don't have any fire safety from the fire departments in -- in this district, that's it.

A.L.J. LEARY: Thank you. Okay. I have finished calling all of the registered speakers, but I wanted to ask the audience if there was anyone else that would like to come up and provide a brief statement, anyone? Okay. Again, I want thank all of you for being here.

And especially thank you Chair Christian for -- for coming. And we heard you and thank you to the company for your session. This public statement hearing is now concluded. And we are going off the record. Thank you.

(The hearing concluded at 2:43 p.m.)

STATE OF NEW YORK

I, HANNAH ALLEN, do hereby certify that the foregoing was reported by me, in the cause, at the time and place, as stated in the caption hereto, at Page 1 hereof; that the foregoing typewritten transcription consisting of pages 1 through 91, is a true record of all proceedings had at the hearing.

IN WITNESS WHEREOF, I have hereunto subscribed my name, this the 28th day of September, 2022.

HANNAH ALLEN, Reporter